SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

CORE -> TIMELINE -> ARTICLES -> MECHANISMS -> AMENDMENTS/CASES -> TRAPS -> ANSWER SPINE

Read the numbered rail top to bottom. Each stage states the exact source, authority, legal effect and limit.

◆ PRIMARY CORE FLOW ◉ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Source control: official text verified; prior artifacts unchanged

00

STAGE 00 PART XVI: DIFFERENT LEGAL TECHNIQUES

PART XVI | REPRESENTATION | SERVICE CLAIMS | OVERSIGHT | IDENTIFICATION

REPRESENT

- Arts 330-334A: legislative seats and time/activation rules.
- Reserved seat is not a separate electorate.

SERVICES

- Art 335: SC/ST claims plus administrative efficiency.
- Articles 15-16 supply adjacent equality routes.

MONITOR / IDENTIFY

- Arts 338-340: commissions, reports and supervision.
- Arts 341-342A: constitutional list mechanics.

MECHANISM / VERDICT — A list identifies; another provision authorises a benefit; a commission monitors.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Part XVI pursues substantive equality through powers that remain legally distinct.

01

STAGE 01 ARTICLES 330 AND 332: REPRESENTATION PLUS DELIMITATION

ARTICLE 330 | ARTICLE 332 | 2001 CENSUS | ARTICLES 82/170 | COMMON ELECTORATE

Article 330: SC/ST Lok Sabha seats; Assam autonomous-district minimum. → Article 332: SC/ST State Assembly seats plus specified North-East safeguards. → Protected candidacy operates within the ordinary territorial electorate. → No Rajya Sabha or Legislative Council reservation under these Articles. → Articles 330/332 presently use 2001 population figures.

Articles 82/170 require legal readjustment and delimitation after post-2026 figures.

SEATS

- Article 330: SC/ST Lok Sabha seats; Assam autonomous-district minimum.
- Article 332: SC/ST State Assembly seats plus specified North-East safeguards.

ELECTORATE

- Protected candidacy operates within the ordinary territorial electorate.
- No Rajya Sabha or Legislative Council reservation under these Articles.

DATA TO MAP

- Articles 330/332 presently use 2001 population figures.
- Articles 82/170 require legal readjustment and delimitation after post-2026 figures.

MECHANISM / VERDICT — Population publication does not itself draw a constituency or create a separate electorate.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Census figures are an input; a lawful delimitation process creates the operative electoral map.

02

STAGE 02 106TH AMENDMENT: COMMENCEMENT TO ELECTORAL OPERATION

106TH AMENDMENT | S.O. 1922(E) | 330A | 332A | 334A | NOT YET OPERATIONAL

106th Amendment (2023): Articles 330A, 332A, 334A and Delhi clause. → S.O. 1922(E): commenced on 16 April 2026. → First census taken after commencement -> relevant figures published. → Then delimitation for this purpose -> electoral operation. → About one-third overall and within SC/ST reserved seats.

Lok Sabha, State Assemblies and Delhi Assembly; not Rajya Sabha/Councils.

TEXT

- 106th Amendment (2023): Articles 330A, 332A, 334A and Delhi clause.
- S.O. 1922(E): commenced on 16 April 2026.

ACTIVATION

- First census taken after commencement -> relevant figures published.
- Then delimitation for this purpose -> electoral operation.

SCOPE

- About one-third overall and within SC/ST reserved seats.
- Lok Sabha, State Assemblies and Delhi Assembly; not Rajya Sabha/Councils.

MECHANISM / VERDICT — Commencement, census publication, delimitation and electoral use are separate legal events.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 106th Amendment has commenced, but its reserved constituencies are not yet operational.

03

STAGE 03 ARTICLE 334A: DURATION, ROTATION AND EXISTING HOUSES

ARTICLE 334A(1) | 15 YEARS | CONTINUATION BY LAW | SUBSEQUENT DELIMITATION | DISSOLUTION

CLAUSE (1)

- Activation after published post-commencement census figures and delimitation.
- Initial fifteen-year period runs from commencement of reservation provisions.

CLAUSES (2)-(3)

- Parliament may determine continuation by law.
- Rotation follows each subsequent delimitation as Parliament determines.

CLAUSE (4)

- Existing House/Assembly representation continues until dissolution.
- No future election date or rotation pattern is assumed.

MECHANISM / VERDICT — Time, continuation and rotation each have their own constitutional rule.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 334A stages implementation while preserving the mandate of an existing House until dissolution.

04

STAGE 04 ANGLO-INDIAN CLOCKS AND EXHAUSTED TRANSITIONS

ARTICLES 331/333 | 104TH AMENDMENT | 80 v 70 YEARS | ARTICLES 336/337 | TRANSITION

Article 331: President could nominate up to two Lok Sabha members. → Article 333: Governor could nominate one Assembly member. → 104th Amendment: SC/ST seats to eighty years, until 25 January 2030. → Anglo-Indian nomination stayed seventy years and ceased after 25 January 2020. → Specified service reservation diminished and ended after ten years.

Special education grants diminished and ended after ten years; 40% admission condition.

REPRESENTATION

- Article 331: President could nominate up to two Lok Sabha members.
- Article 333: Governor could nominate one Assembly member.

ARTICLE 334

- 104th Amendment: SC/ST seats to eighty years, until 25 January 2030.
- Anglo-Indian nomination stayed seventy years and ceased after 25 January 2020.

ARTICLES 336-337

- Specified service reservation diminished and ended after ten years.
- Special education grants diminished and ended after ten years; 40% admission condition.

MECHANISM / VERDICT — Expiry through Article 334 is not the same as textual deletion of Articles 331 and 333.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Constitution protected transition without making every Anglo-Indian provision permanent.

05

STAGE 05 ARTICLE 335 AND THE INCLUSIVE-EFFICIENCY BRIDGE

ARTICLE 335 | 82ND AMENDMENT | M. NAGARAJ (2006) | JARNAIL SINGH (2018) | INCLUSIVE EFFICIENCY

TEXT

- SC/ST claims considered in Union/State appointments consistently with efficiency.
- No fixed quota and no constitutional definition of efficiency.

PROVISO

- 82nd Amendment (2000): qualifying-mark/evaluation relaxation for promotion.
- Detailed authority remains Articles 16(4A)/(4B) and valid law.

CASES

- M. Nagaraj (2006) and Jarnail Singh (2018): promotion doctrine.
- Davinder Singh (2024): Article 335 is a restatement, not a free-standing veto.

MECHANISM / VERDICT — Article 335 links claims and efficiency; it does not create OBC or EWS reservation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Administrative efficiency must be read through inclusion, competence and constitutional equality.

06

STAGE 06 NCSC, NCST AND NCBC: ACCOUNTABILITY NOT ADJUDICATION

NCSC | NCST | NCBC | CIVIL-COURT POWERS | ACTION MEMORANDUM

INSTITUTIONS

- Article 338: NCSC, including Article 338(10) Anglo-Indian reference.
- Article 338A: NCST; Article 338B: NCBC.

FUNCTIONS

- Monitor safeguards, inquire complaints, advise/evaluate and report.
- President-appointed Chair, Vice-Chair and three members.

LIMITS

- Civil-court powers apply to investigation/inquiry.
- Reports and recommendations are not binding decrees or list amendments.

MECHANISM / VERDICT — Inquiry power, reporting power and final legal authority must remain separate.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional commissions strengthen evidence and legislative accountability without replacing courts or legislatures.

07

STAGE 07 ARTICLES 339 AND 340: SUPERVISION VERSUS INVESTIGATION

ARTICLE 339 | ST WELFARE | ARTICLE 340 | SEBC INVESTIGATION | NOT NCBC

President may appoint Scheduled Areas/ST-welfare commission. → Union may direct States on schemes essential for ST welfare. → Temporary presidential commission investigates SEBC conditions and difficulties. → Recommendations, grants and action memorandum go to Parliament. → Article 339 is not Fifth/Sixth Schedule administration.

Article 340 commission is not permanent NCBC under Article 338B.

ARTICLE 339

- President may appoint Scheduled Areas/ST-welfare commission.
- Union may direct States on schemes essential for ST welfare.

ARTICLE 340

- Temporary presidential commission investigates SEBC conditions and difficulties.
- Recommendations, grants and action memorandum go to Parliament.

FIREWALL

- Article 339 is not Fifth/Sixth Schedule administration.
- Article 340 commission is not permanent NCBC under Article 338B.

MECHANISM / VERDICT — Institutional investigation must still be translated through competent law, finance or administration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 339 and 340 create supervision and evidence, not automatic reservation benefits.

08

STAGE 08 ARTICLES 341 AND 342: TERRITORIAL LIST INTEGRITY

ARTICLE 341 | ARTICLE 342 | PRESIDENT | PARLIAMENT BY LAW | TERRITORIALITY

President specifies State/UT SC or ST list by public notification. → Parliament alone includes or excludes by law. → A later executive notification cannot vary the constitutional list.

Governor consultation applies where a State is concerned.

INITIAL

- President specifies State/UT SC or ST list by public notification.
- Governor consultation applies where a State is concerned.

ALTERATION

- Parliament alone includes or excludes by law.
- A later executive notification cannot vary the constitutional list.

EFFECT

- Status is territorial, not automatically pan-India.
- List identity does not itself supply every benefit.

MECHANISM / VERDICT — State evidence and recommendation cannot become independent Article 341 or 342 list law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SC/ST list integrity rests on presidential specification followed by parliamentary alteration.

09

STAGE 09 ARTICLE 342A: 102ND TO 105TH AMENDMENT FEDERALISM

102ND AMENDMENT | JAISHRI LAXMANRAO PATIL (2021) | 105TH AMENDMENT | CENTRAL LIST | STATE LIST BY LAW

Inserted Article 338B, original Article 342A and Article 366(26C). → Constitutionalised the NCBC. → Jaishri Laxmanrao Patil (2021): pre-105th majority displaced State identification. → Separate Maratha ceiling holding must not be conflated. → Article 342A(1)-(2): Central List for Central purposes.

Article 342A(3): State/UT own-purpose list by law; entries may differ.

102ND (2018)

- Inserted Article 338B, original Article 342A and Article 366(26C).
- Constitutionalised the NCBC.

JAISHRI (2021)

- Jaishri Laxmanrao Patil (2021): pre-105th majority displaced State identification.
- Separate Maratha ceiling holding must not be conflated.

105TH (2021)

- Article 342A(1)-(2): Central List for Central purposes.
- Article 342A(3): State/UT own-purpose list by law; entries may differ.

MECHANISM / VERDICT — State SEBC list power does not extend to Articles 341 and 342 SC/ST lists.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 105th Amendment restored express State list competence while retaining a distinct Central List.

10

STAGE 10 SC SUB-CLASSIFICATION: E.V. CHINNAIAH V. STATE OF ANDHRA PRADESH (2004) TO DAVINDER SINGH (2024)

E.V. CHINNAIAH V. STATE OF ANDHRA PRADESH (2004) | DAVINDER SINGH (2024) | 6:1 | EVIDENCE | NO LIST ALTERATION

OLD RULE

- E.V. Chinnaiah v. State of Andhra Pradesh (2004): notified SC class treated as indivisible.
- State grouping for separate quotas was barred.

CURRENT HOLDING

- Davinder Singh (2024): 6:1; E.V. Chinnaiah v. State of Andhra Pradesh (2004) overruled.
- Rational principle, nexus and evidence may support sub-classification.

LIMITS

- No Article 341 list alteration and no all-seats exclusivity.
- Enabling and judicially reviewable; no compulsory nationwide model.

MECHANISM / VERDICT — Sub-classification may advance substantive equality only within evidence-based constitutional limits.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Davinder Singh (2024) separates fair distribution within the SC list from formal alteration of the list.

11

STAGE 11 UPSC SYNTHESIS: SOURCE, AUTHORITY, EFFECT AND STATUS

FIELD | CLASS | SOURCE | AUTHORITY | EFFECT | STATUS

Field -> legislature, service, list, oversight, welfare or local body. → Class -> SC, ST, SEBC, EWS or Anglo-Indian transition. → Source -> exact Article, amendment, law, notification and case. → Authority -> President, Parliament, State, commission or delimitation process. → Effect -> identify, reserve, distribute, monitor or fund.

Status -> commenced, operational, expired or pending a legal step.

DIAGNOSE

- Field -> legislature, service, list, oversight, welfare or local body.
- Class -> SC, ST, SEBC, EWS or Anglo-Indian transition.

PROVE

- Source -> exact Article, amendment, law, notification and case.
- Authority -> President, Parliament, State, commission or delimitation process.

QUALIFY

- Effect -> identify, reserve, distribute, monitor or fund.
- Status -> commenced, operational, expired or pending a legal step.

MECHANISM / VERDICT — Substantive equality requires both effective inclusion and fidelity to institutional competence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Exact-source discipline converts a reservation essay into a constitutional answer.

E

EXTRA OPTIONAL ADVANCED: ANTI-CAPTURE AND REPRESENTATIVE QUALITY

OPTIONAL ADVANCED | ANTI-CAPTURE | REPRESENTATIVE QUALITY | DATA

ANALYSIS

- Recognition may not ensure voice or equal benefit capture.
- Federal differentiation requires comparable data and reasoned law.

LIMIT

- Party selection and rotation affect substantive representation.
- Sub-classification needs periodic review and anti-exclusivity safeguards.

OPTIONAL STATUS — This enrichment is unnecessary for a competent core answer but can sharpen evaluation.

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